

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

November 9, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Members of Boy Scout Pack 219 led those present in reciting the pledge of allegiance.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Dr. Rinne, and pursuant to support received by Ms. Ash and Mr. Collins, agenda item #12 was removed from the Consent Agenda. Mr. Collins moved to approve the remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON OCTOBER 26, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON NOVEMBER 2, 2009. Motion (per Consent Agenda) carried.

Mayor Kaysen declared a conflict of interest due to a voucher payable to him for travel reimbursement (\$46.37), relinquished duties of the chair to Council President Collins, and vacated Council Chambers. Mr. Spiker moved to approve payment of vouchers as presented, seconded by Mr. Brown. In relationship to a voucher payable to Arbor Solutions for removal of trees infected with mountain pine beetles, Forestry staff was commended for their community efforts. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Council President Collins returned duties of the chair to Mayor Kaysen upon his return to Council Chambers.

"AN ORDINANCE AMENDING SECTION 12.04.010 OBSTRUCTION ON STREETS, AND SECTION 12.04.080, CONSTRUCTION AND REPAIR-PERMITS REQUIRED-FEES-EXCEPTION, OF CHAPTER 12.04, STREETS, SIDEWALKS AND DRIVEWAYS GENERALLY, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING" (Postponed from Oct. 26, 2009). Frank Cole commented on the definition of right-of-way relative to construction of new streets and sidewalks, cost to developers, and permit requirements and fees. Reporting for Finance Committee, Mr. Valdez

moved to approve on third and final reading, seconded by Ms. Broyles. Mr. Valdez moved to amend by substitute, seconded by Mr. Pierson. Upon inquiry, Nathan Beauheim, City Engineer's office, reviewed changes contained in the substitute ordinance, stating the substitute creates a limited exception for residential property owners to store materials, such as those utilized for landscaping projects, in the right-of-way for 72 hours prior to a permit being required, and provides a daily, weekly and monthly permit fee schedule. He explained the difference between the proposed storage right-of-way permit and an encroachment permit, and affiliated fees. Upon further inquiry regarding established vs. new street construction and materials stored in the right-of-way, Mr. Beauheim provided information on new subdivision construction, encroachments and preserving the City's rights-of-way, and dedicated vs. established rights-of-way. Upon inquiry, City Attorney Dan White expressed concern with using the word "established" based on plat wording indicating rights-of-way areas are dedicated for use by the public when a plat is filed, and explained the proposed ordinance would not apply to vehicles but would affect personal property being stored in the rights-of-way. Mr. Cole commented on construction material stored in the rights-of-way for property that has not yet been developed, and restrictions being imposed upon developers. Doug Vetter, City Engineer, provided information on the intent of the ordinance, which is to limit storage of containers or materials in the rights-of-way, and when an encroachment permit would be required. Upon inquiry, Mr. Beauheim reviewed typical right-of-way distances from residential lot lines, and Mr. White clarified the ordinance would prohibit a homeowner from placing materials in their driveway close to the curb line and explained the concern with run-off of certain materials into the storm sewer system. Discussion followed on a grace period involving the time frame for material storage in the rights-of-way, and time frame flexibility for residents to incorporate landscaping projects relative to a permit/fee. Mr. Brown moved to amend the substitute as follows, seconded by Mr. Pierson: Under Section 12.04.010, Subsections I., 3. and J., 3. strike the words "seventy-two (72) hours" and replace with "30 days" so the subsections will read "Does not exceed a period of 30 days". Mr. Beauheim expressed concern with the proposed amendment relative to any complaint that may be received within the 30 day time period, and reviewed the process envisioned for a construction project (ex: roof shingle replacement), indicating the intent of the ordinance is to create incentives for individuals to place dumpsters on private property and if this can't be done a permit would be issued involving use of the right-of-way. Discussion included the purpose of extending the permit time to 30 days, environmental issues regarding run-off from materials, and concerns with blocking sidewalks to users. Upon inquiry, Martin Matsen, Development Director, provided information on nuisance and zoning regulations, including setback requirements, and enforcement areas involving storage of materials on private vs. public property, and Mr. Beauheim further explained when an engineering encroachment permit is required. Mr. Vetter advised the encroachment permit would apply to work or construction being done in the right-of-way and if materials are not being used for that purpose then a right-of-way permit for storage of materials would be needed. Motion to amend the substitute failed. Voting "yes" – Mr. Brown, Mr. Pierson and Mr. Spiker. Voting "no" – Ms. Ash, Ms. Broyles, Ms. Case, Mr. Collins, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Discussion continued on encroachment permits, with Mr. Beauheim advising various sections of City Code relate to these types of permits and explaining a developer is required to obtain a permit prior to construction, and concern with driveways being included in the proposed ordinance. Mr. Collins moved to eliminate references to driveways as noted throughout the substitute ordinance, seconded by Mr. Pierson. During ensuing comments and upon inquiry, Mr. White reviewed existing City Code Section 12.04.010 wording which does not prohibit obstructions of driveways and explained if the amendment is adopted then materials could be placed in the area between the sidewalk and curb line (i.e. driveway) which would potentially still be introducing materials into the storm water system

that are undesirable. Discussion continued on Clean Water Act concerns, blockage of streets and driveways, and allowable storage of materials, equipment or other tangible personal property if within 100 feet of a personal residence as provided for in the ordinance. Mr. Vetter provided information on the typical footage involved in right-of-way areas involving sidewalks, curbs and driveways. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Brown, Ms. Broyles and Ms. Case voting “no”. Discussion followed on current City Code Section 12.04.010 provisions and intent of the initial ordinance to restrict storage containers within rights-of-way. Mr. Beauheim requested the word “driveway” be reinserted into Section 12.04.010, Subsections F. and G., and Section 12.04.080, Subsection A. as those sections provide the authority to issue encroachment permits and are specific that a permit is needed to construct a driveway. Ms. Broyles moved to amend by reinserting the word “driveway” into Section 12.04.010, Subsections F. and G., and Section 12.04.080, Subsection A., seconded by Ms. Ash. Mr. Cole questioned the difference in fee schedules for an encroachment permit vs. a right-of-way permit with Mr. Beauheim providing an explanation of the fees. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Brown and Ms. Case voting “no.” Discussion on the proposed substitute ordinance as amended followed and included initial intent of the ordinance and current restrictions on obstructions pursuant to Section 12.04.010 of City Code. Mr. Pierson moved to amend language in Section 12.04.010, Subsections I.3. and J.3. from “Does not exceed a period of 72 hours” to “Does not exceed a period of 10 days,” seconded by Mr. Brown. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no.” Motion to amend by substitute as amended (three amendments) carried. Voting “yes” – Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson and Mayor Kaysen. Voting “no” - Ms. Case, Dr. Rinne, Mr. Spiker and Mr. Valdez. Main motion as amended by substitute failed. Voting “yes” – Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins and Mr. Pierson. Voting “no” – Ms. Case, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen. [Clerk’s note: Passage of an ordinance on 3rd and final reading requires a minimum of six affirmative votes.] Under other City business later in the meeting, Ms. Broyles questioned the current penalty amount and enforcement of violations for storage containers presently located in rights-of-way with Mayor Kaysen advising a response to members of the governing body would be provided.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED, AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM P PUBLIC DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR LOT 2, BLOCK ONE, WINDMILL ROAD, SECOND FILING, (A PORTION OF THE NE1/4 OF SECTION 28, T.14N., R.66W., 6TH P.M.) CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF DELL RANGE BOULEVARD AND WINDMILL ROAD).” Reporting for Public Services Committee, Mr. Brown advised there was no recommendation on the item from the Committee. Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Discussion included concerns with unknown potential type of development involving future use of the property; recommended property use pursuant to the PlanCheyenne document; process that may be utilized to determine possible transfer of property ownership, and comment that the ordinance was a zone change action only. Upon inquiry to staff, Matt Ashby, Planning Services Director, clarified any sale of the City land would come before the governing body for approval, and Brandon Cammarata, Urban Planning Office, reviewed recent modification to the land use map (PlanCheyenne document) to reflect a community business use for the parcel, advising the property could remain as an open space use, and stated the land use map was modified, as approved by the

governing body, as a preparatory aspect to any change in use of the property, explaining any future commercial business property use pursued would need to be consistent with allowable uses. Martin Matsen, Development Director, advised the parcel's current zone classification is a Public District, which includes parks as one of the uses, and provided information on the approval process and requirements that may be imposed for any change to a Community Business District use depending upon the level of development. Motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Broyles, Ms. Case and Dr. Rinne voting "no". (#3876)

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM LIGHT INDUSTRIAL DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR A PORTION OF LOTS 6-17, AND VACATED 16' ALLEY, BLOCK 405, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO W. LINCOLNWAY, EAST OF STINSON AVENUE)" -- referred to Public Services Committee (sponsor - Mr. Brown).

"AN ORDINANCE AMENDING A PORTION OF THE CITY OF CHEYENNE'S SANITATION FEE SCHEDULE PERTAINING TO THE RECYCLE RESIDENTIAL COLLECTION MONTHLY FEE, AS APPROVED BY ORDINANCE NO. 3851 ON JUNE 8, 2009" -- referred to Finance Committee (sponsors - Mr. Brown and Mr. Collins). Under other City business later in the meeting, Mr. Valdez inquired about the status of the monthly recycling fee with Jim Elias, Public Works Director, advising staff is reviewing operational cost data and that the topic will be discussed in conjunction with review of the ordinance at the next Finance Committee meeting.

"A RESOLUTION APPROVING AMENDMENTS TO CLEAN WATER SRF LOAN NO. 092 BETWEEN THE STATE OF WYOMING AND THE CITY OF CHEYENNE, WYOMING FOR AN INCREASE IN THE AMOUNT OF PRINCIPAL FORGIVENESS LOAN FUNDING OF \$1,131,216.43 FOR THE CROW CREEK ANOXIC BASIN PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS (State Loan & Investment Board/American Recovery & Reinvestment Act)." Mr. Valdez moved to adopt in an amount not to exceed \$1,131,216.43, seconded by Ms. Broyles. Upon inquiry, Tim Wilson, BOPU Director, provided information on the forgiveness loan funding through the state and verified the estimated total amount of principal forgiveness will be \$4.3 million dollars upon completion of the project. Motion carried. Voting "yes" – all members of the governing body. (#5168)

"A RESOLUTION APPROVING SUBMISSION OF A 2009 COUNTYWIDE CONSENSUS BLOCK GRANT APPLICATION TO THE STATE LOAN AND INVESTMENT BOARD." Mr. Valdez moved to adopt, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body. (#5169)

[CA] "A RESOLUTION SUPPORTING THE U.S. CENSUS 2010 AND THE CREATION OF A "COMPLETE COUNT COMMITTEE." Motion (per Consent Agenda) carried. (#5170)

[CA] "A RESOLUTION TO ADOPT THE CERTIFICATE AND DECLARATION OF THE CANVASSING BOARD RESULTS OF THE CHEYENNE DOWNTOWN DEVELOPMENT

AUTHORITY DISTRICT SPECIAL ELECTION HELD OCTOBER 20, 2009.” Motion (per Consent Agenda carried). (#5171)

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY COUNCIL TO CONDUCT A MEETING WITH THE BOARD OF DIRECTORS OF THE DOWNTOWN DEVELOPMENT AUTHORITY AND OTHER INTERESTED PARTIES TO DISCUSS FUTURE DEVELOPMENT NEEDS OF THE GREATER CHEYENNE DOWNTOWN AREA” -- referred to Public Services Committee (sponsor - Ms. Case).

LEASES/CONTRACTS/LEGAL:

[CA] Juvenile Accountability Block Grant Contract between the State of Wyoming, Department of Family Services, Division of Juvenile Services and the City of Cheyenne for partial funding of Municipal Juvenile Court staffing and pretrial services (Juvenile Accountability Block Grant). Motion (per Consent Agenda) carried (amount not to exceed \$25,500.00). (#5480)

Contract between the City of Cheyenne and WINhealth partners for City employee health coverage. Mr. Valdez moved to approve, seconded by Mr. Spiker. Upon inquiry, Rich Wiederspahn, Human Resources Director, provided information on continuing health insurance coverage relative to those individuals who leave employment with the City pursuant to federal COBRA requirements (not an expense to the City) and stated new federal provisions are not yet reflected in the current employee handbook. Mr. Valdez moved to amend by substitute, seconded by Mr. Spiker. Mr. Wiederspahn advised the substitute reduces the proposed increase in fees for the next contract term from 10% to 9.5%, and expands chiropractic care coverage and vision and eye wear coverage. Upon inquiry concerning budgeting of the fee increase, Barb Dorr, City Treasurer, stated the fiscal year budget includes an 8% increase, that the increased insurance rates are based on a calendar year, and that the difference in funding needed for 6 months (through the end of the fiscal year) is anticipated to be covered due to savings realized from new/replacement employee hiring policies. Appreciation was expressed to staff with regard to application of retiree plan increases being the same ratio as for active employees. Upon query on industry increases for health insurance coverage and amendments to the employee handbook, Mr. Wiederspahn responded that, on average, information he has received is that the industry percentage increase varies anywhere from 12-15%, and clarified the employee handbook is in the process of being updated and modified. Motion to amend carried. Voting “yes” – all members of the governing body. Pursuant to further comments on federal changes to COBRA requirements, Dr. Glode, Medical Director, WinHealth, advised Congress has amended the law for a look-back period as well as a provision for filing earlier, which resulted in making the application process more flexible, and confirmed COBRA provides for up to 18 months of coverage. Comment was made in opposition to WinHealth’s HMO business structure, employee complaints, and level of coverage provided under the WinHealth plan. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Ms. Case voting “no”. (#5481)

[CA] Contract between the City of Cheyenne, Police Department, Victim Witness Program and the State of Wyoming, Division of Victim Services for ARRA VOCA funding for Fiscal Year 2010 (American Recovery & Reinvestment Act). Motion (per Consent Agenda) carried (amount not to exceed \$58,096.00). (#5482)

Lease agreement between the City of Cheyenne and Union Telephone Company for wireless rooftop communication system to be located at the Parks Maintenance Building, located at 4500 Dell Range Blvd. -- referred to Finance Committee. Mr. Valdez advised the item was reviewed under other items for the agenda at the Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Valdez moved to approve, seconded by Mr. Spiker. Mr. Valdez moved to amend by substitute, seconded by Mr. Spiker. Upon inquiry, Teresa Moore, Parks and Recreation Department, explained the substitute contains changes to insurance requirements pursuant to City Attorney and Risk Manager reviews; stated the agreement involves placing 6 cell phone towers (approximately 5' in height) on the roof of the Parks Maintenance facility to increase the cell phone service range provided by Union Telephone, and reviewed generally the initial lease and renewal terms of the agreement reflecting potential total revenue to the City in the amount of \$231,637.00. City Attorney Dan White and Mayor Kaysen provided additional information on the initial agreement term with renewal options and potential total revenue amounts. Motion to amend carried. Voting "yes" -- all members of the governing body. Upon inquiry, Jim Malone, right-of-way engineer for Union Telephone, clarified the towers are planned to be placed on the south end of the building for radio wave propagation and the "pointing" to other towers being constructed within the area for service coverage. Comment followed on possible placement of the towers closer to the north end of the building from an aesthetic standpoint. Mr. Malone advised a structural survey of the building had been conducted, and it had been determined that the south end was the optimum place on the building to place the towers to provide coverage. Mayor Kaysen requested Mr. Malone convey the inquiry regarding placement of the towers on the north rather than the south end of the building to Union Telephone to assess the proposed location of the towers relative to the comment involving visual aesthetics. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. (#5483)

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Change Order No. 1 to Bid #R-31-08 between the City of Cheyenne and Kubat Equipment and Service Co. for additional work needed to complete installation of the above ground vaulted tank and fueling system for the Parks Maintenance Building, located at 4500 Dell Range Blvd. (2003-2006 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 5357 between the City of Cheyenne and S&S Builders, LLC for additional services for the Carey Avenue Extension Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #M-12-10 for a contract between the City of Cheyenne and Aztec Construction Co., Inc., of Cheyenne, for the Transfer Station Fire Main Loop Project (State Loan & Investment Board) -- referred to Finance Committee.

[CA] Consideration of Bid #R- 4-10 for the surplus sale of one Deery Mastic Mixer to include eight pallets of hot applied mastic patching material utilized by the Public Works Department to Vance Brothers, Inc. of Aurora, CO -- referred to Finance Committee

There being no further business to come before the governing body, the meeting was officially adjourned at 7:55 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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